

COMMITTEE ON FINANCE
SENATE AMENDMENTS TO S.B. 1215
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 23-901.01, Arizona Revised Statutes, is amended
3 to read:

4 23-901.01. Occupational disease; proximate causation;
5 presumption; definition

6 A. The occupational diseases as defined by section 23-901,
7 paragraph 13, subdivision (c) ~~shall be~~ IS deemed to arise out of the
8 employment only if all of the following six requirements exist:

9 1. There is a direct causal connection between the conditions under
10 which the work is performed and the occupational disease.

11 2. The disease can be seen to have followed as a natural incident
12 of the work as a result of the exposure occasioned by the nature of the
13 employment.

14 3. The disease can be fairly traced to the employment as the
15 proximate cause.

16 4. The disease does not come from a hazard to which workers would
17 have been equally exposed outside of the employment.

18 5. The disease is incidental to the character of the business and
19 not independent of the relation of employer and employee.

20 6. The disease after its contraction appears to have had its origin
21 in a risk connected with the employment, and to have flowed from that
22 source as a natural consequence, although it need not have been foreseen
23 or expected.

24 B. Notwithstanding subsection A of this section and section
25 23-1043.01, any disease, infirmity or impairment of a peace officer's
26 health that ~~is caused by brain, bladder, rectal or colon cancer, lymphoma,~~
27 ~~leukemia or adenocarcinoma or mesothelioma of the respiratory tract and~~
28 ~~that~~ results in disability or death is presumed to be an occupational

1 disease as defined in section 23-901, paragraph 13, subdivision (c) and is
2 deemed to arise out of employment IF THE DISEASE, INFIRMITY OR IMPAIRMENT
3 IS CAUSED BY ANY OF THE FOLLOWING:

- 4 1. ADENOCARCINOMA.
- 5 2. BLADDER CANCER.
- 6 3. BRAIN CANCER.
- 7 ~~[4. BREAST CANCER.]~~
- 8 ~~[5. BUCCAL CAVITY CANCER.]~~
- 9 ~~[6.]~~[4.] COLON CANCER.
- 10 ~~[7. ESOPHAGEAL CANCER.]~~
- 11 ~~[8. KIDNEY CANCER.]~~
- 12 ~~[9. LARGE INTESTINE CANCER.]~~
- 13 ~~[10.]~~[5.] LEUKEMIA.
- 14 ~~[11. LUNG CANCER.]~~
- 15 ~~[12.]~~[6.] LYMPHOMA.
- 16 ~~[13. MALIGNANT MELANOMA.]~~
- 17 ~~[14.]~~[7.] MESOTHELIOMA OF THE RESPIRATORY TRACT.
- 18 ~~[15. MULTIPLE MYELOMA.]~~
- 19 ~~[16. NON-HODGKIN'S LYMPHOMA.]~~
- 20 ~~[17. OVARIAN CANCER.]~~
- 21 ~~[18. PHARYNX CANCER.]~~
- 22 ~~[19. PROSTATE CANCER.]~~
- 23 ~~[20.]~~[8.] RECTAL CANCER.
- 24 ~~[21. SKIN CANCER.]~~
- 25 ~~[22. STOMACH CANCER.]~~
- 26 ~~[23. TESTICULAR CANCER.]~~

27 C. The presumption provided in subsection B of this section is
28 granted if all of the following apply:

29 1. The peace officer passed a physical examination before
30 employment and the examination did not indicate evidence of cancer.

31 2. The peace officer was assigned to hazardous duty for at least
32 five years.

33 D. Subsection B of this section applies to both of the following:

34 1. Peace officers currently in service.

35 2. Former peace officers who are sixty-five years of age or younger
36 and who are diagnosed with a cancer that is listed in subsection B of this
37 section not more than fifteen years after the peace officer's last date of
38 employment as a peace officer.

39 E. Subsection B of this section does not apply to cancers of the
40 respiratory tract if there is evidence that the peace officer's exposure
41 to cigarettes or tobacco products outside of the scope of the peace
42 officer's official duties is a substantial contributing cause in the
43 development of the cancer.

44 F. The presumption provided in subsection B of this section may be
45 rebutted by clear and convincing evidence that there is a specific cause
46 of the cancer other than an occupational exposure to a carcinogen as
47 defined by the international agency for research on cancer.

1 G. For the purposes of this section, "peace officer" means a
2 full-time peace officer who was regularly assigned to hazardous duty as a
3 part of a special operations, special weapons and tactics, explosive
4 ordinance disposal or hazardous materials response unit.

5 Sec. 2. Section 23-901.09, Arizona Revised Statutes, is amended to
6 read:

7 23-901.09. Presumption; cancers; firefighters and fire
8 investigators; applicability; definitions

9 A. Notwithstanding section 23-901.01, subsection A and section
10 23-1043.01, ~~;~~

11 ~~if~~ any disease, infirmity or impairment of a firefighter's or fire
12 investigator's health that ~~is caused by brain, bladder, rectal or colon~~
13 ~~cancer, lymphoma, leukemia or adenocarcinoma or mesothelioma of the~~
14 ~~respiratory tract and that~~ results in disability or death is presumed to
15 be an occupational disease as defined in section 23-901, paragraph 13,
16 subdivision (c) and is deemed to arise out of employment IF THE DISEASE,
17 INFIRMITY OR IMPAIRMENT IS CAUSED BY ANY OF THE FOLLOWING:

- 18 1. ADENOCARCINOMA.
- 19 2. BLADDER CANCER.
- 20 3. BRAIN CANCER.
- 21 4. BREAST CANCER.
- 22 5. BUCCAL CAVITY CANCER.
- 23 6. COLON CANCER.
- 24 7. ESOPHAGEAL CANCER.
- 25 8. KIDNEY CANCER.
- 26 9. LARGE INTESTINE CANCER.
- 27 10. LEUKEMIA.
- 28 11. LUNG CANCER.
- 29 12. LYMPHOMA.
- 30 13. MALIGNANT MELANOMA.
- 31 14. MESOTHELIOMA OF THE RESPIRATORY TRACT.
- 32 15. MULTIPLE MYELOMA.
- 33 16. NON-HODGKIN'S LYMPHOMA.
- 34 17. OVARIAN CANCER.
- 35 18. PHARYNX CANCER.
- 36 19. PROSTATE CANCER.
- 37 20. RECTAL CANCER.
- 38 21. SKIN CANCER.
- 39 22. STOMACH CANCER.
- 40 23. TESTICULAR CANCER.

41 ~~2. Any disease, infirmity or impairment of a firefighter's or fire~~
42 ~~investigator's health that is caused by buccal cavity, pharynx, esophagus,~~
43 ~~large intestine, lung, kidney, prostate, skin, stomach, ovarian, breast or~~
44 ~~testicular cancer or non-Hodgkin's lymphoma, multiple myeloma or malignant~~
45 ~~melanoma and that results in disability or death is presumed to be an~~
46 ~~occupational disease as defined in section 23-901, paragraph 13,~~
47 ~~subdivision (c) and is deemed to arise out of employment.~~

1 B. The presumptions provided in subsection A of this section are
2 granted if all of the following apply:

3 1. The firefighter or fire investigator passed a physical
4 examination before employment and the examination did not indicate
5 evidence of cancer.

6 2. The firefighter or fire investigator was assigned to hazardous
7 duty for at least five years.

8 3. For the presumption provided in subsection A, paragraph ~~2~~ 4, 5,
9 7, 8, 9, 11, 13, 15, 16, 17, 18, 19, 21, 22 OR 23 of this section and for
10 firefighters only, the firefighter received a physical examination that is
11 reasonably aligned with the national fire protection association standard
12 on comprehensive occupational medical program for fire departments (NFPA
13 1582).

14 C. Subsection A of this section applies to both of the following:

15 1. Firefighters or fire investigators currently in service.

16 2. Former firefighters or fire investigators who are sixty-five
17 years of age or younger and who are diagnosed with a cancer that is listed
18 in subsection A of this section not more than fifteen years after the
19 firefighter's or fire investigator's last date of employment as a
20 firefighter or fire investigator.

21 D. Subsection A of this section does not apply to cancers of the
22 respiratory tract if there is evidence that the firefighter's or fire
23 investigator's exposure to cigarettes or tobacco products outside of the
24 scope of the firefighter's or fire investigator's official duties is a
25 substantial contributing cause in the development of the cancer.

26 E. The presumption provided in subsection A of this section may be
27 rebutted by clear and convincing evidence that there is a specific cause
28 of the cancer other than an occupational exposure to a carcinogen as
29 defined by the international agency for research on cancer.

30 F. For the purposes of this section:

31 1. "Firefighter" means a full-time firefighter who was regularly
32 assigned to hazardous duty.

33 2. "Fire investigator" means a person who is employed full time by
34 a municipality or fire district and who is trained in the process of and
35 responsible for determining the origin, cause and development of a fire or
36 explosion.

37 Enroll and engross to conform

38 Amend title to conform

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